

**ELIZABETH II**



**1970 CHAPTER xv**

An Act to confer further powers on the mayor, aldermen and citizens of the city of Swansea in relation to the finances of the city; and for other purposes.  
[15th May 1970]

**W**HEREAS it is expedient that further and better provision should be made with reference to the finances of the city of Swansea and that the powers of the mayor, aldermen and citizens of the city should be extended as by this Act provided:

And whereas it is expedient that the other provisions in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed: 1933 c. 51.

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and



with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.        1. This Act may be cited as the Swansea Corporation Act 1970.

Interpretation.    2.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them:—

1933 c. 51.        “the Act of 1933 ” means the Local Government Act, 1933;

“the Act of 1937 ” means the Local Government Superannuation Act, 1937;

1937 c. 68.

1961 c. 62.

“the Act of 1961 ” means the Trustee Investments Act, 1961;

“the city ” means the city of Swansea;

“the council ” means the council of the city;

“the Corporation ” means the mayor, aldermen and citizens of the city of Swansea acting by the council;

“enactment ” means any enactment, whether public, general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;

“financial year ” means a period of twelve months ending on 31st March;

“the fund ” means the superannuation fund maintained by the Corporation under Part I of the Act of 1937;

1967 c. 9.

“gross rate income ” means the gross rate income as used in the determination of the product of a rate of one penny in the pound under rules made pursuant to section 113 of the General Rate Act, 1967;

“revenues ” has the same meaning as in section 218 of the Act of 1933;

“signature ” includes a facsimile of a signature by whatever process reproduced.

(2) Any reference in this Act to an enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment including this Act.

Power to raise money by bills.

3. In addition to the modes of borrowing prescribed by the Act of 1933, the Corporation may raise money—

(1) for any purpose for which the Corporation are authorised to borrow;

(2) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Corporation may properly be applied;



by means of bills (to be called "Swansea Corporation bills", in this section referred to collectively as "bills" and separately as "a bill") subject to, and in accordance with, the following provisions:—

- (a) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:
- (b) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:
- (c) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Corporation may determine:
- (d) Bills shall be issued under the authority of a resolution passed by the council, and shall bear the signature of the treasurer of the city or of some other person authorised by the council:
- (e) The Corporation may make regulations providing for—
  - (i) the preparation, form, mode of issue, payment and cancellation of bills;
  - (ii) the issue of new bills in lieu of bills defaced, lost or destroyed;
  - (iii) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills;
  - (iv) the giving of a proper discharge on the payment of a bill; and
  - (v) amending or revoking any regulations previously made or deemed to have been made under this paragraph:
- (f) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:
- (g) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—
  - (i) the sum of one million pounds; or



(ii) one-fifth of the amount of the estimated gross rate income of the city during the then current financial year;

whichever is the greater:

(h) Subject to the provisions of the last preceding paragraph, the Corporation may renew a bill at maturity:

(i) The Corporation may borrow for the purpose of repaying the principal money raised by bills but except as aforesaid any power of the Corporation to borrow shall be suspended to the extent of the amount which has been raised for capital purposes by the issue of bills.

Power to raise money by bearer bonds.

4. In addition to any other method by which the Corporation may raise any money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise the money by means of the issue of bearer bonds or other securities to bearer.

Power to raise money abroad.

5.—(1) Any method by which the Corporation are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

(2) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury, and subject to such conditions as the Treasury may impose.

(3) The enactments empowering the Corporation to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there was substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there was substituted a reference to the sum expressed in terms of the foreign currency (adjusted, where necessary, to produce an amount which the Corporation consider appropriate having regard to all the circumstances of the transaction).

Power to Corporation to lend money to local authorities, etc.

6.—(1) The Corporation may lend to any local authority, and a local authority may borrow from the Corporation, upon such terms and conditions as may be agreed, such money as the Corporation think fit to lend and as the local authority are authorised to borrow for the purpose for which such money is proposed to be borrowed, and any money so lent shall be repaid to the Corporation by the local authority within the period prescribed by the sanctioning authority or otherwise for the repayment by the local authority of the money they are authorised to borrow:



Provided that the powers of this subsection shall not be exercised unless—

(a) the local authority borrowing from the Corporation is either—

(i) an authority of which the Corporation is a constituent member; or

(ii) an authority to which the council appoint representatives; or

(iii) a member authority of a consortium of which the Corporation is also a member; or

(b) the sum lent by the council is part of a larger sum borrowed by the Corporation by way of a stock issue, bond issue, foreign loan or issue of bills for their own needs and for the needs of another local authority seeking to raise money by the same means.

(2) Any agreement under this section may be made by resolutions passed respectively by the council and by the local authority.

(3) Any sum borrowed by the Corporation for the purpose of this section shall be repaid within a period to expire not more than one year after that for which the same was lent by them to the local authority.

(4) Where any sum is borrowed by the Corporation for the purposes of this section it shall be lawful for the Corporation for such periods as they may think fit to suspend any annual provision required to be made by virtue of any enactment for the time being in force for the repayment of the sum borrowed.

(5) The Corporation shall be entitled to charge such rate of interest in respect of any particular loan under this section as may be agreed between the Corporation and the borrower:

Provided that the Corporation shall ensure so far as it is reasonably practicable to do so that having regard to all the circumstances existing at the time the loan is made the rate of interest agreed is such that no loss is incurred by the Corporation in respect of the loan.

(6) All costs, charges and expenses incurred by the Corporation in respect of any particular loan under this section shall be met by the borrower.

(7) In this section the expression “local authority” means the council of a county, county borough or county district and any other authority being a local authority as defined by section 34 of the Local Loans Act, 1875, and includes any joint board if all the constituent authorities are such local authorities as aforesaid. 1875 c. 83.



Extension of power to invest super-annuation fund moneys.

7.—(1) In its application to the investment by the Corporation under section 21 (3) of the Act of 1937 of any moneys forming part of, but which are not for the time being moneys required to meet payments out of, the fund, the Act of 1961 shall have effect as if—

(a) the following paragraph were included in Part III (Wider-Range Investments) of Schedule 1 to that Act:—

“ 4. In any securities issued in any of the scheduled territories within the meaning of section 1 of the Exchange Control Act, 1947, or in Canada or in the United States of America, or in any of the following countries, namely, Austria, Belgium, Denmark, France, Holland, Italy, Luxembourg, Norway, Portugal, Spain, Sweden, Switzerland and Western Germany”;

(b) in Part IV (Supplemental) of the said schedule—

(i) in paragraph 1 there were inserted after the word “schedule” the words “other than those mentioned in paragraph 4 of the said Part III”;

(ii) after paragraph 2 there were inserted the following paragraph—

“ 2A. The securities mentioned in paragraph 4 of Part III of this schedule do not include shares or debenture stock not fully paid up (except shares or debenture stock which, by the terms of issue, are required to be fully paid up within nine months of the date of issue) ”.

(2) Notwithstanding anything in the Act of 1961 the Corporation may invest any moneys referred to in subsection (1) of this section in any manner specified in Part III of Schedule 1 to the Act of 1961, as amended by this section, and may also from time to time vary any such investments:

Provided that no such moneys as aforesaid shall be so invested at any time when the value of all the investments made in the manner specified in Part III of the said schedule as so amended equals or exceeds three-quarters of the total value of the fund.

Investment of super-annuation fund in acquisition, etc., of land.

8.—(1) Subject to the provisions of this section, the powers exercisable by the Corporation under the Act of 1961 to invest any property belonging to the wider-range part of the fund shall include power to invest such property in such manner as they think fit (and whether alone or in association with any other person) in the acquisition, development or management of land situated in the United Kingdom, the Isle of Man or the Channel Islands and used or to be used for residential, commercial or industrial purposes, but Part IV of Schedule 1 to the Act of 1961 shall not apply to any investment made under this subsection.

1947 c. 14.



(2) So long as the value of the investments of property for the time being made under the powers conferred by the foregoing subsection is equal to or greater than one-quarter of the total value of the wider-range part of the fund, no further investment may be made thereunder.

(3) For the purposes of the last foregoing subsection, the value of any investment of property belonging to the wider-range part of the fund shall be deemed to be the value of the investment at the time at which it was made.

(4) Subsections (2) to (7) of section 6 of the Act of 1961 shall apply in relation to the exercise of the powers of investment conferred by subsection (1) of this section as they apply in relation to the exercise by the Corporation of the powers conferred by section 1 of that Act to invest any property belonging to the wider-range part of the fund in a manner specified in Part III of Schedule 1 to that Act.

(5) In this section "property" and "the wider-range part" in relation to the fund have the same meanings as they have for the purposes of the Act of 1961.

9. The provisions of the last two foregoing sections shall have effect notwithstanding anything in subsection (3) of section 21 of the Act of 1937.

Section 21 (3) of Act of 1937 not to limit foregoing powers.

10. All costs, charges and expenses incurred by the Corporation in investing moneys forming part of the superannuation fund maintained by them, or otherwise in relation thereto, shall be paid by the Corporation out of that fund.

Expenses of investment of superannuation fund.

11. All powers and duties conferred or imposed by this Act shall be deemed to be in addition to and not in derogation of any other powers and duties conferred or imposed by any enactment, law or custom, and, subject to any express provision of this Act, all such other powers and duties may be exercised and shall be performed in the same manner and as if this Act had not been passed.

Powers of Act to be cumulative.

12.—(1) (a) The Corporation may (if they think fit) provide a reserve fund in respect of any undertaking, department or service of the Corporation from which revenue is derived by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are applied in any other manner authorised by any enactment) investing the same in any securities in which trustees are from time to time authorised to invest trust funds or in which the Corporation are by section 7 (Extension of power to invest superannuation fund moneys) or section 8 (Investment of superannuation fund in acquisition, etc., of land) of this Act authorised to invest moneys forming part of

Reserve funds.



the superannuation fund maintained by them, until the fund so provided amounts to the maximum for the time being prescribed by the Corporation.

(b) Any income arising from the investment of the moneys in the reserve fund in manner provided by this subsection shall be carried to and form part of the general rate fund of the city and an amount equivalent to such income shall be credited to the reserve fund.

(2) The reserve fund provided under this section may in respect of the undertaking, department or service to which it relates be applied—

- (a) in making good any deficiency at any time happening in the income of the Corporation from the undertaking, department or service; or
- (b) in meeting any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking, department or service; or
- (c) in or towards the payment of the cost of renewing, improving or extending any works, buildings, machinery, plant or conveniences forming part of the undertaking, department or service or otherwise for the benefit thereof;

and so that if the fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(3) Resort may be had to the reserve fund provided under this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

(4) If and when the Corporation establish a reserve fund under this section in respect of any such undertaking, department or service as aforesaid any moneys standing to the credit of any reserve fund or contingency or depreciation fund provided by the Corporation in respect of that undertaking, department or service and in existence at the date of the passing of this Act shall be carried to and form part of the reserve fund provided under this section in respect of that undertaking, department or service.

Power to  
borrow.

**13.—**(1) The Corporation may borrow without the consent of any sanctioning authority—

- (a) such sums as may be necessary for the payment of the costs, charges and expenses of this Act;
- (b) such sums as may be requisite for the purpose of lending to a local authority under section 6 (Power to Corporation to lend money to local authorities, etc.) of this Act.



(2) The Corporation shall pay off all moneys borrowed under paragraph (a) of the foregoing subsection within such period as the Corporation may determine not exceeding five years from the passing of this Act.

(3) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed under this section or under subsection (3) of the said section 6 for the repayment of any money borrowed under subsection (1) of this section shall as respects that money be the fixed period for the purpose of the said Part IX.

(4) It shall not be lawful to exercise the powers of borrowing conferred by this section, other than the power of borrowing to pay the costs, charges and expenses of this Act, except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946. 1946 c. 58.

14.—(1) For the better performance of their respective powers or duties, provision may be made by agreement between the Corporation and any other authority or body referred to in the Schedule to this Act for the taking by either party thereto of action of the following kinds:—

Provision of reciprocal services, etc., by Corporation and other bodies.

- (a) the undertaking by one party for the other of any administrative, clerical, professional or technical services;
- (b) the use or maintenance by one party of any vehicle, plant, equipment or apparatus of the other party and if it appears convenient the services of any staff employed in connection therewith;
- (c) the carrying out of works of maintenance by one party in connection with land or buildings for the maintenance of which the other is responsible.

(2) Where provision could be made either by an agreement under this section or by virtue of the powers conferred by section 271 of the Public Health Act, 1936, it shall be made under the said section 271 and not under this section. 1936 c. 49.

(3) In its application to the use of any mechanical road-making equipment or plant, the provisions of subsection (1) of this section shall extend to enable the Corporation to let for hire such equipment or plant to any other authority to whom this section applies or to any person carrying out work for or on behalf of the Corporation.



(4) This section shall cease to have effect on the passing during the present Session of Parliament of any general Act which makes provision with respect to the supply of goods and services by local authorities to certain public bodies.

Electronic  
or  
mechanical  
equipment.

15. At any time after the Corporation have provided any electronic or mechanical equipment for the purposes of any of their work they may by agreement with any other person use or permit that other person to use the said equipment for the purposes of that other person and they may make such charges as may be agreed for the use of the said equipment.

Saving for  
Exchange  
Control Act  
1947.  
1947 c. 14.

16. It shall not be lawful to exercise the powers conferred by any of the provisions of this Act except in compliance with the Exchange Control Act 1947.

Costs of  
Act.

17. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation.



## SCHEDULE

### AUTHORITIES AND BODIES TO WHICH SECTION 14 APPLIES

### Section 14.

1. The council of the administrative county of Glamorgan and of any borough or any urban or rural district in that county.
2. The parish council of any rural parish in the said county.
3. Any police authority, regional hospital board or river authority whose area or jurisdiction is wholly or partly within the borough or the said county.
4. Any statutory undertakers or any other body of persons not otherwise referred to in this Schedule discharging functions in pursuance of any enactment within the borough or the said county.
5. The magistrates' court committee and the probation committee for the borough.
6. Any joint committee appointed by the Corporation and one or more local authorities or any joint committee of which the Corporation forms a constituent authority.
7. Any voluntary organisation in receipt of a grant or subscription lawfully made by the Corporation within twelve months of the exercise of the powers of section 14 of this Act.
8. The council of any university or university college.
9. Any other body which the Secretary of State, on the application of the Corporation, approves in writing for the purposes of this Schedule.

In this Schedule "voluntary organisation" means any organisation not carried on for profit, not being an organisation carried on by a public authority.

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# Swansea Corporation Act 1970

## CHAPTER xv

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